

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

DECLARATION OF DAVID
GOLDEN IN SUPPORT OF
COMPLAINANT’S MOTION
TO COMPEL DISCOVERY
FROM RESPONDENTS MSC
MEDITERRANEAN
SHIPPING COMPANY S.A.,
ZIM INTEGRATED SHIPPING
SERVICES, COSCO
SHIPPING LINES CO LTD.,
AND WAN HAI LINES LTD.
AND MOTION FOR
SANCTIONS

I, David Golden, hereby declare as follows:

1. I am a partner at Constantine Cannon LLP, Counsel for Complainant in the above-captioned litigation matter.
2. I am a member in good standing of the Bar of the District of Columbia and have filed an appearance in this proceeding.
3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.
4. I submit this Declaration in support of Complainant’s Motion to Compel and for Sanctions (the “Motion”). This Declaration is submitted simultaneously with the Motion.
5. On October 14, 2020, I served the first set of Requests for Production of Documents on MSC Mediterranean Shipping Company S.A. (“MSC”), ZIM Integrated Shipping Services (“ZIM”), COSCO Shipping Lines Co. Ltd. (“COSCO”), and Wan Hai Lines Ltd. (“Wan Hai”)

(collectively “the non-producing Respondents”). A true and correct copy of this email is included as **Exhibit 1**.

6. Given the lack of document productions from some Respondents, on August 20, 2021, counsel for IMCC sent Respondents a message reminding them of the Parties’ shared commitment to rolling productions. IMCC received no response to this message. A true and correct copy of this correspondence is included as **Exhibit 2**.

7. On August 27, 2021, counsel for IMCC sent a second message to Respondents reminding them of the Parties’ shared commitment to rolling productions. IMCC received no response to this message. A true and correct copy of this correspondence is included as **Exhibit 3**.

8. On September 3, 2021, the final day of document discovery, counsel for the non-producing Respondents informed IMCC for the first time that they would not produce documents in accordance with the operative scheduling order. MSC and ZIM proposed finalizing document productions by September 13, 2021, seven days before the beginning of the deposition period. COSCO and Wan Hai did not provide any estimated date for finalizing document production at all. A true and correct copy of this correspondence is included as **Exhibit 4**.

9. In response, I sent a message to the non-producing Respondents requesting a meet-and-confer, and for the non-producing Respondents to immediately finish their document productions. A true and correct copy of this correspondence is included as **Exhibit 5**.

10. A meet-and-confer between IMCC and the non-producing Respondents occurred on September 7, 2021 at 10:00 AM. This meet and confer was insufficient to cure non-producing Respondents’ failure to comply with the operative scheduling order. The parties are at impasse.

11. At the September 7, 2021 meet-and-confer, counsel for Respondents also raised a general objection that the non-party motor carrier productions do not include container usage invoices. I responded that if the Respondents believed there were any deficiencies in any non-party motor carrier’s production, Respondents should articulate any alleged deficiencies with specificity, so that the non-party motor carrier can respond accordingly.

I declare that the foregoing is true and correct, executed this 7th day of September, 2021, in
Washington, D.C.

/s/ David Golden

David Golden
Constantine Cannon LLP

EXHIBIT 1

Fore, Wyatt

From: Golden, David
Sent: Wednesday, October 14, 2020 1:57 PM
To: Rohde, Wayne; Raleigh, Christopher; Sobotta, Kathryn
Cc: Cannon, Stephen; Greenstein, Seth; Levine, Richard; Fore, Wyatt; Samantar, Osob; Richard Pianka
Subject: IMCC v. OCEMA, et al. (FMC Dkt. No 20-14) -- Complainant's First Request for Production of Documents
Attachments: OCEMA_RFP.docx; CCM_RFP.docx; CMA_CGM_RFP.docx; COSCO_RFP.docx; HMM_RFP.docx; Maersk_RFP.docx; MSC_RFP.docx; ONE_RFP.docx; Wan_Hai_RFP.docx; Zim_RFP.docx

Counsel,

Attached to this email are Complainant IMCC's First Requests for Production of Documents to Respondents Ocean Carrier Equipment Management Association, Inc.; Consolidated Chassis Management, LLC; CMA CGM S.A.; COSCO Shipping Lines Co. Ltd.; HMM Company Limited; Maersk A/S; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; Wan Hai Lines Ltd.; and ZIM Integrated Shipping Services. Please confirm that you accept service on behalf of these Respondents.

We are serving these Requests now to allow the parties to begin preparations for the expedited discovery process under the FMC rules and per Judge Wirth's Initial Order. The return date is currently set for 30 days after the service of Respondents' answers.

Regards,

David Golden

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EXHIBIT 2

Fore, Wyatt

From: Fore, Wyatt
Sent: Friday, August 20, 2021 12:12 PM
To: Raleigh, Christopher; Gerald.Morrissey@hklaw.com; chris.nolan@hklaw.com; pkeane@cckd-ny.com; jdemay@cckd-ny.com; drose@mdslaw.com; Rohde, Wayne; Sobotta, Kathryn
Cc: Group - CJC IMCC; Richard Pianka
Subject: IMCC v. OCEMA et al.

Counsel:

At this [link](#) you will find a production from motor carriers in the *IMCC v. OCEMA et al.* matter. This link will expire on **September 19, 2021** and I will send the passwords in a separate email. Please do not hesitate to contact me if you have any questions or issues with the documents.

Also, as you are well-aware, we are nearing the deadline for document production. Yet we have to receive ***any productions for a majority of the Respondents***. I recognize that document review is always a burden, but it was our hope that our shared commitment to rolling productions would prevent document dumps at the end of the document discovery period. In contrast, IMCC and the Motor Carriers have nearly completed our productions already. Do the Respondents plan on making any productions next week, before the final deadline?

Best,
Wyatt

J. Wyatt Fore
CONSTANTINE | CANNON
1001 Pennsylvania Ave NW, 1300N
Washington, DC 20004
Direct: [\(202\) 204-3509](tel:(202)204-3509)
Main: [\(202\) 204-3500](tel:(202)204-3500)

EXHIBIT 3

Fore, Wyatt

From: Fore, Wyatt
Sent: Friday, August 27, 2021 1:03 PM
To: Raleigh, Christopher; Gerald.Morrissey@hklaw.com; chris.nolan@hklaw.com; pkeane@cckd-ny.com; jdemay@cckd-ny.com; drose@mdslaw.com; Rohde, Wayne; Sobotta, Kathryn
Cc: Group - CJC IMCC; Richard Pianka
Subject: IMCC v. OCEMA et al.

Counsel:

At this [link](#) you will find a production from motor carriers in the *IMCC v. OCEMA et al.* matter. This link will expire on **September 27, 2021** and I will send the passwords in a separate email. Please do not hesitate to contact me if you have any questions or issues with the documents.

We are nearing the deadline for document production. Nevertheless, we have not received any productions (since the priority productions on April 2, 2021) for the following Respondents: ***COSCO, Maersk, MSC, Wan Hai, and ZIM***. In contrast, IMCC, and the motor carriers we represent in responding to your subpoenas, have substantially completed their productions. As you know, all parties have agreed to and have represented to Judge Wirth that they would make rolling productions, with the goal of preventing large document productions at the end of the document discovery period. The lack of rolling document productions from some Respondents—and deficiencies in other Respondents' productions—jeopardize the schedule and prejudice IMCC's ability to depose witnesses effectively and efficiently. IMCC reserves all rights to seek relief from Judge Wirth on these matters.

Best,
Wyatt

J. Wyatt Fore
CONSTANTINE | CANNON
1001 Pennsylvania Ave NW, 1300N
Washington, DC 20004
Direct: [\(202\) 204-3509](tel:(202)204-3509)
Main: [\(202\) 204-3500](tel:(202)204-3500)

EXHIBIT 4

Fore, Wyatt

From: Raleigh, Christopher <CRaleigh@cozen.com>
Sent: Friday, September 3, 2021 4:23 PM
To: Golden, David; Fore, Wyatt
Cc: Gerald.Morrissey@hklaw.com; chris.nolan@hklaw.com; Deana E. Rose; Paul Keane; Joseph De May; Rohde, Wayne; Sobotta, Kathryn
Subject: IMCC v. OCEMA, et al. - Document Productions

Dear David and Wyatt,

Last night, we transmitted document productions for Evergreen and Maersk. Today, there will be a supplemental production by Evergreen and production of the unredacted CMG-CGM documents. However, Respondents' document productions will not be completed today so this will update you regarding their status:

- We are currently processing sizeable data bases for MSC and ZIM. We expect to complete a review of the documents and their respective productions on or before September 13;
- COSCO and Wan Hai: we will update you on Tuesday regarding the status of these productions.

Respondents' counsel have reviewed the productions that were made by the subpoenaed IMCC-member motor carriers ("Motor Carriers") through August 20. We have not completed our review of the approximately 700,000 pages produced on August 27. But the production by the Motor Carriers appears to be deficient in a number of ways. Some motor carriers have produced nothing, and others have produced only a small number of documents. In some cases in which significant production has been made, there are obviously responsive documents missing. For example, in some instances we know motor carriers have correspondence responsive to Request #1, but no such correspondence has been produced. More significantly, what appears to be missing from most if not all of the Motor Carriers' document production are: (1) invoices issued by Equipment Providers to Motor Carriers for chassis usage and/or per diem charges; and (2) corresponding invoices issued by Motor Carriers to their customers for those same charges. Production of these invoices was the subject of conference calls among us and, following these efforts to resolve objections to their production, it was our understanding that the Motor Carriers would produce these categories of documents.

These categories of documents are directly relevant to core issues of this case and to allegations made by Complainant in the Complaint. If there is a concern about the volume of documents that would have to be produced to comply with these requests, we are willing to work with you to develop a streamlined process for their production. We request that you advise us as to your availability for a conference call to discuss a resolution of this issue.

Sincerely,

Chris/Wayne



Christopher Raleigh
Member | Cozen O'Connor
3 WTC, 175 Greenwich Street - 55th Floor | New York, NY 10007
P: 212-908-1245 F: 866-591-9125
[Email](#) | [Bio](#) | [LinkedIn](#) | [Map](#) | [cozen.com](#)

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EXHIBIT 5

Fore, Wyatt

From: Golden, David
Sent: Monday, September 6, 2021 1:25 PM
To: Raleigh, Christopher; Fore, Wyatt
Cc: Gerald.Morrissey@hklaw.com; chris.nolan@hklaw.com; Deana E. Rose; Paul Keane; Joseph De May; Rohde, Wayne; Sobotta, Kathryn
Subject: RE: IMCC v. OCEMA, et al. - Document Productions

Counsel,

IMCC objects to Respondents' unilateral modification of Judge Wirth's Second Amended Scheduling Order to extend the document production deadline. If Respondents require an extension, they must seek relief from Judge Wirth.

You are hereby given notice that IMCC demands that Respondents COSCO, MSC, Wan Hai, and ZIM make full document productions immediately. In addition, IMCC demands that Respondents COSCO, MSC, Wan Hai, ZIM, Maersk, and Evergreen agree to waive any objections and to produce documents to cure any deficiencies within their document productions within three calendar days of notice by email. These Respondents' lack of rolling productions, contrary to the parties' joint commitment to Judge Wirth, have prejudiced IMCC's ability to conduct depositions in this proceeding.

If Respondents do not agree, IMCC will seek relief and appropriate sanctions from Judge Wirth.

We request a meet and confer on Tuesday morning (9/7/21) at 10 AM ET.

Sincerely,

David Golden

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From: Golden, David
Sent: Friday, September 3, 2021 6:35 PM
To: Raleigh, Christopher <CRaleigh@cozen.com>; Fore, Wyatt <wfore@constantinecannon.com>
Cc: Gerald.Morrissey@hklaw.com; chris.nolan@hklaw.com; Deana E. Rose <drose@mdslaw.com>; Paul Keane <pkeane@cckd-ny.com>; Joseph De May <jdemay@cckd-ny.com>; Rohde, Wayne <WRohde@cozen.com>; Sobotta, Kathryn <KSobotta@cozen.com>
Subject: RE: IMCC v. OCEMA, et al. - Document Productions

Chris,

While we appreciate the production update on the last day of the document discovery period, it should come as no surprise that IMCC is disappointed with the lack of rolling productions from many of the Respondents. For example, COSCO, MSC, Wan Hai, and Zim have made no productions since April, which we now discover will not produce at all by today's deadline. As you know, all parties repeatedly committed to Judge Wirth to make rolling productions so that this proceeding can move forward. The lack of rolling Respondents' productions clearly prejudices IMCC's ability to review those documents in preparation for depositions, which are scheduled to begin in 17 days. In addition, the lack of rolling productions and the lateness of other productions denies IMCC the ability to rectify any deficiencies in those Respondents' productions prior to depositions. Respectfully, your claimed deficiencies in the motor carriers' productions highlights the prejudice. Nevertheless, we are available next Wednesday at noon to discuss, including our proposed deposition protocols and scheduling.

Sincerely,

David Golden

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From: Raleigh, Christopher <CRaleigh@cozen.com>

Sent: Friday, September 3, 2021 4:23 PM

To: Golden, David <dgolden@constantinecannon.com>; Fore, Wyatt <wfore@constantinecannon.com>

Cc: Gerald.Morrissey@hklaw.com; chris.nolan@hklaw.com; Deana E. Rose <drose@mdslaw.com>; Paul Keane <pkeane@cckd-ny.com>; Joseph De May <jdemay@cckd-ny.com>; Rohde, Wayne <WRohde@cozen.com>; Sobotta, Kathryn <KSobotta@cozen.com>

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instances we know motor carriers have correspondence responsive to Request #1, but no such correspondence has been produced. More significantly, what appears to be missing from most if not all of the Motor Carriers' document production are: (1) invoices issued by Equipment Providers to Motor Carriers for chassis usage and/or per diem charges; and (2) corresponding invoices issued by Motor Carriers to their customers for those same charges. Production of these invoices was the subject of conference calls among us and, following these efforts to resolve objections to their production, it was our understanding that the Motor Carriers would produce these categories of documents.

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Sincerely,

Chris/Wayne



Christopher Raleigh

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